

Decision

Subject: Processing of personal data
in the investigation of a complaint

I refer to the complaint submitted to my Office on February 4, 2024, by XXX (hereinafter referred to as the "Complainant") against the Consumer Protection Service (hereinafter referred to as the "CPS") and to all relevant correspondence regarding the above matter, which forms part of the case file. Based on the duties and powers conferred upon me by Articles 57 and 58 of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I note the following.

A. Case Incidents

2. According to the submitted complaint:

- 2.1. In March 2023, the Complainant submitted a complaint to the CPS against Alexandros Stefanis & Co. Ltd. (hereinafter referred to as the "Company").
- 2.2. The complaint concerned warranty issues (removable parts) of electronic devices and was accompanied by a relevant screenshot with an excerpt posted on the Company's website.
- 2.3. In January 2024, the Complainant was informed by the Service that "in the context of further investigation of the complaint," his details were disclosed to the aforementioned Company.
- 2.4. The Complainant believes that his complaint concerned a general issue and that his details did not need to be disclosed during its investigation. He pointed out that, "The action of the Consumer Protection Service to disclose – transfer my personal data without my knowledge, without my consent, and without being deemed necessary for the investigation of a general complaint (accompanied by evidence, which they could have confirmed themselves, since the posting on the internet existed) I consider to be invalid."
- 2.5. Due to the above disclosure, as explained by the Company, he has been identified through the Stephanis card, labeled as an "undesirable customer," and is refused any sales. Consequently, he is not given the right to benefit from offers or even purchase products that this Company exclusively brings to Cyprus, resulting in him incurring additional shipping charges.

Attached to the complaint submission form were:

- Electronic complaint submission form against Alexandros Stefanis & Co. Ltd.,
- Electronic messages to and from the Service dated 25/1/24, 31/1/24, 1/2/24.

3. For the investigation of the complaint, on February 23, 2024, my Office requested the positions of the CPS and an additional clarification from the Complainant.

4. The Complainant, on February 23, 2024, explained in response to a related inquiry from my Office, which sought clarifications regarding the purpose of reporting a specific incident that concerned him to the inspector of the CPS during a phone call, that "in a phone communication I had with an officer of the consumer protection service (they called me), I was asked how I identified the said violation and I mentioned the incident that had happened to me. I also pointed out that, in any case, two years had passed since the day of my purchase, however, the said Company provides a warranty of 3-6 months for a specific category of electronic devices and not two years as stipulated by the legislation."

5. On March 4, 2024, the positions of the Service were received, according to which:

5.1. On March 28, 2023, an inspector of the CPS was assigned to investigate the above-submitted complaint. The inspector proceeded to inform the Complainant by phone about the assignment of the investigation of his complaint. During this phone call, the Complainant himself stated what is written in his complaint, adding that he had approached the Company asking them to provide a warranty for the batteries of the product he purchased from the said Company and that a Company employee informed him that it was out of warranty. Subsequently, he informed her that he checked the website and found that it stated verbatim "All consumables or accessories of a product (...) for a period not exceeding three months" and that after the above, he proceeded with the said complaint. The inspector informed him about the provisions of the Law on Certain Aspects Concerning Contracts for the Sale of Goods of

2021 (Law 154(I)/2021).

5.2. On March 31, 2023, the inspector contacted the Company by phone and spoke with the complaints investigation officer, informing her about the

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Submission of the complaint regarding the incorrect recording on its website and the violation of the provisions of Law 154(I)/2021 that arises. Correspondence followed, and the required changes were made to the website.

5.3. Following the above, the inspector asked the responsible person whether the company applies a policy of not providing the legal warranty concerning all consumables, as stated on the website. The responsible person stated that due to an oversight, the said reference was not amended and that the company provided a 2-year warranty to all consumers.

5.4. Therefore, the inspector, within the framework of protecting the collective interests of consumers, informed the responsible person about the specific complaint – specific claim, noting the lack of warranty provided to the Complainant for a specific product and requested explanations/justification. The responsible person requested the Complainant's details so that she could provide the necessary clarifications. For this sole purpose (i.e., the investigation of his complaint), the inspector disclosed the Complainant's phone number to the company, so that they would have the opportunity to respond as required by the rules of good administration and due diligence.

5.5. The responsible person informed the inspector that the goods purchased by the Complainant were out of warranty, as the 2-year warranty period had expired, information that the Complainant had concealed when submitting his complaint.

5.6. After a relevant re-examination of the company's website, the Consumer Protection Service (CPS) found full compliance with its recommendations, proceeded with verbal recommendations to the company regarding the provision of correct information to consumers, and informed the Complainant by phone about the outcome of his complaint, stating that the company had taken all the necessary corrective actions following verbal recommendations and that the reason the company did not provide him with a warranty for the product's batteries was that the two-year period from the date of purchase had expired.

5.7. The investigation of the complaint was completed in April 2023, and the Complainant had been informed about the disclosure of his details to the company for the purpose of its investigation, without any related complaint or objection regarding the use of his personal data, with the complaint to my office being submitted after the passage of 11 months.

6. As a result of the above, it became evident that the presentation of facts by both parties differs. According to the Complainant, the Service asked him during a phone call how he identified the incorrect posting; the Complainant mentioned a specific incident that had happened to him, informing the CPS of the expiration of the two years from the day he purchased his products. In contrast, the CPS claims that the Complainant, during his phone call, supplemented what he had stated in writing with additional information regarding an incident that had happened to him, without mentioning the expiration of the two years from the purchase of the products. The CPS also stated that the Complainant had been informed about the disclosure of his details to the company for the purpose of its investigation.

7. The above discrepancies were deemed of essential importance, as in the event that the Complainant had stated during his phone conversation that the purchase of his products had been made more than 2 years ago, and since this was not included in his written complaint, it does not appear that further investigation of the specific incident was necessary and therefore the disclosure of his data to the company.

8. Taking the above into account, my office sent another email to the CPS, requesting their positions on specific issues and documentation of what they stated regarding the phone call. On May 13, 2024, the following was received:

"Upon receiving additional information through phone calls and/or in any other case, the officer investigating the case in question records what has been verbally reported on the e-Collaboration

platform (Sharepoint). See attached screenshot regarding the present case.

Upon receiving additional information through phone calls and/or in any other case, what has been verbally reported is recorded on the e-Collaboration platform (Sharepoint). However, there is no written recorded procedure.

No specific update is provided.

The Complainant was informed about the disclosure of his data by the Service to the company verbally by the officer handling his case on 19/4/2023 and subsequently in a written email from the Consumer Protection Service on 25/1/2024, when the issue was raised by the complainant (please see attached)."

In the above email from the CPS, a relevant screenshot of the e-Collaboration platform was attached, which I deem important to present in full below:

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B. Legal Framework

9.1. Pursuant to Article 4 of the Regulation,

“‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person,

‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction,

‘controller’: the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State.”

9.2. According to Article 5 of the Regulation,

“1. Personal data shall be:

- a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’),
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes in accordance with Article 89(1) (‘purpose limitation’),
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’),
- d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay (‘accuracy’),
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods, provided that the personal data will be processed solely for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89(1) and provided that appropriate technical and organizational measures are applied to safeguard the rights and freedoms of the data subject (‘storage limitation’),
- f) processed in a manner that ensures appropriate security of the personal data, including protection

against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

2. The controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ('accountability')."

C. Reasoning

10. By virtue of the definitions as set out in the Legal Framework of this Decision, the Complainant, as the identifiable person whose data was processed by the DPA during the investigation of his complaint, constitutes, according to the provisions of the Regulation, a data subject, and the DPA, as the service that determined the purposes and means of the processing, is the controller.

11. Based on the facts as presented above, the two parties disagree and present the facts concerning the complaint that the Complainant submitted to the DPA with substantial differences. Neither party is able to prove and substantiate its positions regarding the data submitted before the DPA orally, during the telephone call.

12. According to Article 5 of the Regulation, the DPA, as the controller, is obliged to process the data lawfully and fairly in a transparent manner towards the data subjects, as well as to process accurate, adequate, and relevant data to the purpose, limiting them to what is necessary for the purposes for which they are processed. The DPA must, according to the provisions of paragraph (2) of Article 5 of the Regulation, be able to demonstrate its compliance with the Principles of processing personal data.

12.1. Despite its obligation under the Regulation, the DPA in the present case under investigation fails to substantiate its positions regarding the information it claims the Complainant submitted orally before it during the telephone call, which would justify in this case the investigation of the...

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specific incident concerning him and the disclosure of his personal data, namely his name and/or phone number, to the company.

12.2. From the data before me and particularly the screenshot of the e-Collaboration platform which the Consumer Protection Service (YΠΚ) attached to its response, the proportionality of the data in relation to the purpose served by this specific processing is not confirmed/documented.

13. Despite the aforementioned shortcomings of the YΠΚ that I identify, I find it important to take into account in my Conclusion the notification of the Complainant regarding the potential disclosure of his data through the posted Privacy Policy of the YΠΚ and the submission of a named complaint on his part, without any related request for the maintenance of his anonymity. As well as the fact that the initial investigation of the YΠΚ focused on the general claim that had been submitted in writing in the complaint, without any disclosure of personal data. After examining the positions of the company and deeming it necessary, the YΠΚ proceeded to investigate the claim of the Complainant regarding a specific incident.

14. Taking into account all of the above, in my opinion, in cases where the investigation of complaints requires relevant data processing, it is important that the positions and claims that the YΠΚ investigates be submitted in writing before it. Any additional oral reports should be accompanied by their written submission, so that the YΠΚ is always able to demonstrate its compliance with data protection principles, in accordance with the principle of accountability. A relevant procedure concerning the processing of data during the investigation of complaints would contribute to the protection of personal data.

D. Conclusion

15. Based on the above investigation and the powers conferred upon me by Article 58 of Regulation (EU) 2016/679, having taken into account and considered, among other things:

1. the circumstances and factors that the Consumer Protection Service and the Complainant presented before me,
2. the documentation of their positions,
3. the potential consequences that the Complainant might suffer due to the disclosure of his details,

4. the notification of the Complainant regarding potential disclosure of his data during the investigation of his complaint through the Privacy Policy of the Consumer Protection Service,

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I find that no corrective measure against the Consumer Protection Service, as defined in Article 58 of the Regulation, is justified.

16. Considering that the Consumer Protection Service was unable to document the proportionality of the processing it conducted, I recommend that it adopt relevant practices and/or procedures for the written submission of all claims it takes into account during the investigation of submitted complaints.

Eirini Loizidou Nikolaidou

5 September 2024

Commissioner for the Protection of Personal Data